



Undue Hardship: Disability Accommodation

Overview

An agency must reasonably accommodate the known physical or mental limitations of an otherwise qualified applicant or employee with a disability unless it can show the accommodation would impose an undue hardship on its operations. [29 CFR 1630.9](#). An accommodation is generally an undue hardship if it requires significant difficulty or expense, taking into account an agency's operations and resources. [29 CFR 1630.2\(p\)](#). An agency cannot simply claim a requested accommodation is an undue hardship, but must prove its assertion convincingly.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** in this Quick Start Guide all to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), and *A Guide to Federal Labor Relations Authority Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

In general

- The complainant has the initial burden of showing an accommodation seems reasonable on its face. Once the complainant has shown the accommodation is "reasonable," the burden shifts to the agency to provide specific evidence establishing the accommodation would cause an undue hardship under the particular circumstances. *U.S. Airways, Inc. v. Barnett*, [103 LRP 4280](#), 122 S. Ct. 1516 (2002).
- Generalized conclusions will not suffice to support a claim of undue hardship. Instead, undue hardship must be based on an individualized assessment of current circumstances that show that a specific reasonable accommodation would cause significant difficulty or expense. [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- A determination of undue hardship should be based on several factors, including:
 - The nature and cost of the accommodation needed;
 - The overall financial resources of the facility making the reasonable accommodation; the number of persons employed at this facility; the effect on expenses and resources of the facility;
 - The overall financial resources, size, number of employees, and type and location of facilities the employer (if the facility involved in the reasonable accommodation is part of a larger entity);
 - The type of operation of the employer, including the structure and functions of the workforce, the geographic separateness, and the administrative or fiscal relationship of the facility involved in making the accommodation to the employer;
 - The impact of the accommodation on the operation of the facility. [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- Factors to consider in assessing undue hardship include the overall size of the agency's program with respect to number of employees; the type and number of facilities; the size of the budget; the type of agency operation, composition, and structure of the agency's workforce; and the nature and cost of the accommodation. [29 CFR 1630.2\(p\)](#).
- If an employer determines that one accommodation will cause undue hardship, but a second type of reasonable accommodation will be effective and will not cause an undue hardship, then the employer must provide the second accommodation. [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- In its [Policy Guidance: Guidance on Executive Order 13164 -- Establishing Procedures to Facilitate the Provision of Reasonable Accommodation](#), the EEOC notes that, in assessing undue hardship, the resources of the agency as a whole, not just those of an individual office, will be considered.

- "It is not sufficient to merely state in a conclusory manner that an accommodation would be an undue hardship. The undue hardship burden is a 'rigorous one' and the agency must 'prove convincingly' that such a hardship actually exists." *Alvara v. Department of Homeland Security*, [114 LRP 42609](#) (Special Panel 2014).

Cost

- In determining whether an accommodation is too costly, the EEOC considers the overall financial resources of the agency, not only the resources of the facility in question. *Birchfield v. Department of the Air Force*, [112 LRP 4147](#), EEOC No. 0120102071 (EEOC OFO 2011).
- An agency's representations that it will cost more in overtime to provide a requested reasonable accommodation generally will be insufficient to show undue hardship. Any arguments about the costliness of an accommodation must specifically address the costs in relation to the overall resources of the agency. *Preston v. U.S. Postal Service*, [107 LRP 48048](#), EEOC No. 0120054230 (EEOC 2007).
- Neither the statute nor the legislative history supports a cost-benefit analysis to determine whether specific accommodation causes an undue hardship. Whether the cost of a reasonable accommodation imposes an undue hardship depends on the employer's resources, not on the individual's salary, position, or status (e.g., full-time versus part-time, salary versus hourly wage, permanent versus temporary). [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- The complainant, a writer-editor who was blind, was denied reasonable accommodation when her office was relocated during construction. In part, the agency did not show that it would be an undue hardship to automate four doors that were difficult for her to open when she had to retrieve water for her guide dog. Although the agency denied her request because the cost per door was \$5,000, the EEOC was not persuaded that the accommodation was so costly to impose an undue hardship on the agency, given its size and annual budget. *Birchfield v. Department of the Air Force*, [112 LRP 4147](#), EEOC No. 0120102071 (EEOC OFO 2011).
- The complainant was denied reasonable accommodation when the agency failed to modify a demonstration trailer to make it wheelchair accessible. Because the complainant was unable to access the trailer in his wheelchair, he was denied an equal opportunity to enjoy the benefits and privileges of employment that employees without disabilities enjoyed. The EEOC rejected the agency's claim concerning the cost of the modifications, noting that it should not have limited itself to the budget of one agency facility in assessing the cost. *Swofford v. Federal Aviation Administration*, [103 LRP 41447](#), EEOC No. 01A21334 (EEOC OFO 2003).

Impact on coworkers

- An employer cannot claim undue hardship based on possible morale issues with coworkers, but may be able to show undue hardship where provision of a reasonable accommodation would be unduly disruptive to other employees' ability to work. [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- **Hadley:** The fact that a shift change will result in some inconvenience to coworkers is not an undue hardship. However, when a permanent assignment of the complainant to the day shift would result in all other employees losing their day shift assignments, and also require those employees to work additional weekend and overtime hours, this does constitute an undue hardship. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Shift Changes](#), citing *Cyr v. Department of Homeland Security*, [105 LRP 34461](#), EEOC No. 01A43015 (EEOC OFO 2005).
- An employer cannot claim undue hardship based on employees' (or customers') fears or prejudice toward the individual's disability. [EEOC Enforcement Guidance: Reasonable Accommodation and Undue Hardship Under the Americans with Disabilities Act](#).
- The Federal Aviation Administration's assertion that allowing an airway transportation specialist to report to work at 8 a.m. instead of 7 a.m. as a reasonable accommodation would not be fair to other employees did not establish undue hardship. *Lloyd E. v. Department of Transportation*, [117 LRP 35496](#), EEOC No. 0120150325 (EEOC OFO 2017).
- The agency could not establish that granting the complainant's request for telework two days per week as an accommodation of his disabilities (blindness, sleep apnea) would create an undue hardship. The supervisor allegedly said that the requested arrangement was causing coverage and morale problems in the office. The EEOC explained that an agency cannot claim undue hardship based on the fact that the provision of a reasonable accommodation "might have a negative impact on the morale of other employees." *Clayton C. v. Department of Transportation, Federal Highway Administration*, [115 LRP 57070](#), EEOC No. 0120120350 (EEOC OFO 2015).
- Permitting the complainant to have his service dog with him at all times would have imposed an undue hardship on the agency. The dog was an untrained puppy that "went in the trash can and jumped over other people when he came in." The complainant refused to provide any documentation regarding the dog's future training or its vaccination status even when asked to do so. *Augustine F v. Department of the Army*, [124 LRP 29697](#), EEOC No. 2023002365 (EEOC OFO 2024).

Seniority

- In *U.S. Airways, Inc. v. Barnett*, [103 LRP 4280](#), 122 S. Ct. 1516 (U.S. 2002), the U.S. Supreme Court held that, ordinarily an employer's showing that the employee's requested accommodation conflicted with seniority rules would be sufficient to show, as a matter of law, that the accommodation was not reasonable.
- If an agency argues that a seniority system precludes accommodation, an employee would still have an opportunity to show that "special circumstances" existed that would render the exception to the seniority rules reasonable. Special circumstances might modify the import of expectations created by a seniority system to the point where the requested accommodation would not likely make any difference in employee expectations. *U.S. Airways, Inc. v. Barnett*, [103 LRP 4280](#), 122 S. Ct. 1516 (2002).

Direct threat

- A "direct threat" is defined as "a significant risk of substantial harm to the health or safety of the individual or others that cannot be eliminated or reduced by reasonable accommodation." [29 CFR 1630.2](#) (r).
- The determination that an individual poses a "direct threat" must be based on an "individualized assessment of the individual's present ability to safely perform the essential functions of the job." The assessment must apply "reasonable medical judgment that relies on the most current medical knowledge and/or on the best available objective evidence." [29 CFR 1630.2](#) (r).
- Under [29 CFR 1630.2](#) (r), when determining whether an individual poses a direct threat, an agency must consider:
 1. The duration of the risk;
 2. The nature and severity of the potential harm;
 3. The likelihood that the potential harm will occur; and
 4. The imminence of the potential harm.
- An employer may require, as a qualification standard, that an individual not pose a direct threat to safety. A "direct threat" is defined as a "significant risk of substantial harm" that cannot be eliminated or reduced by reasonable accommodation. [29 CFR 1630.2](#) (r). The agency has the burden of proof regarding whether there is a significant risk of substantial harm. *Lamb v. Social Security Administration*, [112 LRP 18653](#), EEOC No. 0120103232 (EEOC 2012).
- The U.S. Postal Service did not subject a clerk to disability discrimination when it denied her request to wear z-coil shoes as an accommodation of her arthritis. The agency had legitimate safety concerns related to the shoes based on the heel height and the manufacturer's indication that the shoes could present a driving or tripping hazard and should not be worn in areas with protruding objects or objects that could be caught in the coil. Allowing the clerk to wear the shoes would have posed an undue hardship on the agency because of the safety concerns involved. *Thomas v. U.S. Postal Service*, [112 LRP 42711](#), EEOC No. 0120090999 (EEOC OFO 2012).

Undue hardship found

- The Social Security Administration established that it would have been an undue hardship to accommodate an ALJ experiencing the impact of cancer treatments by removing essential functions from her position and shifting her workload to other employees. *Sade M. v. Social Security Administration*, [125 LRP 11467](#), EEOC No. 2024001240 (EEOC OFO 2025).
- Permitting the complainant to have his service dog with him at all times would have imposed an undue hardship on the agency. The dog was an untrained puppy that "went in the trash can and jumped over other people when he came in." The complainant refused to provide any documentation regarding the dog's future training or its vaccination status even when asked to do so. *Augustine F v. Department of the Army*, [124 LRP 29697](#), EEOC No. 2023002365 (EEOC OFO 2024).
- Allowing an anatomic and clinical pathologist at an agency medical center to have eliminated and reduced duties as an accommodation for his mental disabilities would have been an undue hardship because it would remove him from performing cytology, where he was needed as one of only three pathologists certified in that specialty. Cytology services for veterans and patients would be reduced by 33%, forcing the agency to recruit and hire another cytology-certified pathologist to cover the employee's regular cytology duties. *Zachery V. v. Department of Veterans Affairs, Veterans Health Administration*, [123 LRP 12576](#), EEOC No. 2022001530 (EEOC OFO 2023).
- A firefighter for the Navy was not subjected to disability discrimination when he was denied an additional 11 months of LWOP because the extended leave would have caused staff fatigue as other employees were required to work extra shifts when the firefighter was on LWOP. The EEOC found the leave would have imposed an undue hardship on the agency, noting that during the relevant period, the agency had a limited number of personnel in firefighter positions. *Valentine P. v. Department of the Navy*, [120 LRP 892](#), EEOC No. 2019000546 (EEOC OFO 2019).
- The U.S. Postal Service was not required to allow an employee to work at a much slower pace than his coworkers as an accommodation of his disabilities. Allowing a slow pace would create an undue hardship because it would significantly disrupt customer service and greatly decrease the timely delivery of mail. *Cory C. v. U.S. Postal Service*, [118 LRP 6782](#), EEOC No. 0120151334 (EEOC OFO 2018).

- The agency did not deny a physician with driving limitations reasonable accommodation when it refused to provide him with transportation for a twice-weekly commute to another medical facility. It was not responsible for providing him with a driver for his commute and excusing him from working at the distant facility would have posed an undue hardship on the agency because it would deny patients services closer to their homes, requiring them to drive a significant distance for treatment. *Gerald L. v. Department of Veterans Affairs*, [115 LRP 54532](#), EEOC No. 0120130776 (EEOC OFO 2015).
- The complainant was not denied reasonable accommodation when she retired after the agency proposed to remove her based on her long absence. Although extended leave can be a reasonable accommodation for a disability in some situations, it may be an undue hardship and therefore not be required under circumstances where an employee has already taken two years of leave, has no foreseeable date of return and the agency needs an employee in the position at issue to carry out its functions. *Complainant v. Department of Veterans Affairs*, 0120130755, [115 LRP 44960](#) (EEOC OFO 2015).
- The EEOC concurred with the MSPB's final decision finding no discrimination. It determined that the evidence sufficiently established that the agency could not reasonably accommodate the complainant's extreme sensitivity to latex without incurring undue hardship. *Lamberson v. Department of Veterans Affairs*, [2002 LRP 181](#), EEOC No. 03A00049 (EEOC OFO 2002).

Failure to show undue hardship

- The Defense Contract Audit Agency failed to show that it would be an undue hardship to accommodate an auditor with severe hearing loss. The agency said he had difficulty following verbal and written instructions. The auditor said in group settings, voices were unclear. The EEOC found the agency should have considered and addressed specifically how providing caption call service, such as CapTel with real-time captioning as requested by the auditor, would have affected the agency. The agency did not do so. It was not sufficient for the agency to state that the contractor work facility would not allow it. *Arnulfo T. v. Department of Defense, Defense Contract Audit Agency*, [123 LRP 15681](#), EEOC No. 2021003604 (EEOC OFO 2023).
- The Department of Veterans Affairs failed to make a good-faith effort to accommodate a probationary social science specialist's learning disability during the "final knowledge check" exam. The record showed that she informed the agency about her learning disability and requested additional time to take the exam, to ask questions during the test, and to be informed about what would be on the test. The agency did not engage in the interactive process and failed to show that her requested accommodation would have imposed an undue hardship. *Alena C. v. Department of Veterans Affairs*, [123 LRP 34485](#), EEOC No. 2023001110 (EEOC OFO 2023).
- An engineering technician for the Forest Service, a disabled veteran, was denied reasonable accommodation for his neurological condition when he was denied leave without pay while he sought testing and treatment for his declining condition. The agency did not show granting LWOP would be an undue hardship. *Kyle S. v. Department of Agriculture, Forest Service*, [121 LRP 28901](#), EEOC No. 2019005694 (EEOC OFO 2021).
- The U.S. Postal Service failed to show that reassigning a mail handler with lifting restrictions to a different position would have resulted in undue hardship on its operations. Therefore, the handler established that he was denied a reasonable accommodation for his disability. *E. A. v. U.S. Postal Service*, [120 LRP 8808](#), EEOC Nos. 0120182340, 2019005819 (EEOC OFO 2020).
- A financial management analyst for the Department of State requested telework for two days per week as a reasonable accommodation to prevent an exacerbation of her mixed connective tissue disease and to ease her symptoms. The agency denied the request. The EEOC found discrimination, concluding there was no basis for management's belief that there was insufficient work for her to complete while teleworking. Further, it did not show the accommodation would present an undue hardship. *Alejandrina L. v. Department of State*, [117 LRP 49145](#), EEOC No. 0120152145 (EEOC OFO 2017).
- The Department of Defense subjected a sales store checker with carpal tunnel syndrome and shoulder pain to disability discrimination when it denied her reasonable accommodation request for a 10-minute sit down break for every hour worked. The agency failed to show that providing the accommodation would be an undue hardship. *Yvette H. v. Department of Defense, Defense Commissary Agency*, [116 LRP 38867](#), EEOC No. 0120140365 (EEOC OFO 2016).
- The Department of the Treasury failed to reasonably accommodate a correspondence examination technician with attention deficit disorder. It delayed 18 months in providing her with a quiet work area and failed to show it would be an undue hardship to provide her with other accommodations, such as modifying the manner in which she handled telephone calls and the manner in which she was assigned cases, and by allowing her an alternative work schedule. *Michelle G. v. Department of the Treasury, Internal Revenue Service*, [116 LRP 21616](#), EEOC No. 120132463 (EEOC OFO 2016).
- A trial attorney for the Federal Energy Regulatory Commission was denied reasonable accommodation for her disabilities (multiple skin, cardiac, orthopedic conditions) in part when the agency delayed for two years before installing automatic doors at her work. The fact that the agency installed the doors showed that the accommodation was not an undue hardship. *Latarsha A. v. Federal Energy Regulatory Commission*, [116 LRP 13974](#), EEOC Nos. 0120123215, 0120131079 (EEOC OFO 2016).
- The Department of Education violated the Rehabilitation Act when it failed to show that allowing an analyst to work at home or in an empty office as a reasonable accommodation for her adult attention deficit hyperactivity disorder would be an undue hardship. She was awarded

\$60,000 in nonpecuniary damages, \$66,823 in attorney's fees, and \$272 in costs. *Selma D. v. Department of Education*, [116 LRP 18485](#), EEOC No. 0720150015 (EEOC OFO 2016).

- The agency subjected the complainant to disability discrimination when it rescinded the flexible work schedule it had granted her as an accommodation for the serious side effects she experienced from the drug that was prescribed on a long-term basis after she underwent breast cancer surgery. The agency submitted no evidence or argument that the accommodation would present an undue hardship. *Darleen R. v. Secretary, Department of Transportation, Federal Aviation Administration*, [114 LRP 23276](#), EEOC No. 0120081003 (EEOC 2014).
- A contract representative for the Social Security Administration was denied reasonable accommodation for her bipolar disorder and post-traumatic stress disorder. Although it would have been an undue hardship on the agency to allow her to take unscheduled leave in an unfettered manner, allowing her to take one day of unscheduled leave every other month without having to provide medical documentation would not have been an undue hardship on the agency because it would have allowed the agency to maintain control over her leave, while the representative would not have had to undergo the stress of getting medical documentation on days where her disability resulted in her having a hard time just getting out of bed. *Underwood v. Social Security Administration*, [113 LRP 4545](#), EEOC No. 0720120001 (EEOC OFO 2013).
- An administrative assistant for the Social Security Administration was denied reasonable accommodation for her multiple conditions when management rescinded the reasonable accommodation that allowed her to work a flexible schedule. The EEOC rejected the agency's argument of undue hardship because nothing indicated that the assistant's schedule for four years created an undue hardship or that she was in a threatening situation when she worked late. *Lamb v. Social Security Administration*, [112 LRP 18653](#), EEOC No. 0120103232 (EEOC 2012).
- **Hadley:** The agency failed to demonstrate an undue hardship in not deploying an interpreter to Iraq for a hearing-impaired intelligence officer. Although the agency asserted that deploying an interpreter with the complainant would have created a shortage of interpreters for hearing-impaired employees in the Washington, D.C., area, it submitted no evidence to establish the effects of deploying an interpreter to Iraq. The EEOC noted several delays by the agency in responding to the complainant's requests for accommodation and the fact that one of the interpreters had previously been deployed to Iraq to serve as a linguist. *Hadley* [Guide to Federal Sector Equal Employment Law and Practice: Interpreters and Signers](#), citing *Cruzan v. Department of Defense*, [108 LRP 50341](#), EEOC No. 0120071893 (EEOC 2008).

Other Resources

- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [Quick Start Guide: Disability Discrimination -- The Basics](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Equipment and Furniture](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Job Restructuring](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Reassignment](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Scheduling](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Sign Language Interpreter](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- Telework](#)
- [Enforcement Guidance: Procedures for Providing Reasonable Accommodation for Individuals with Disabilities](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 15 -- Reasonable Accommodation and GINA, Subchapter 02: Defenses to Reasonable Accommodation, Section A -- Undue Hardship, Subsection 01 -- Proving Undue Hardship](#)

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